KYRO CREATOR OPERATIONS & COMMISSION AGREEMENT

U.S. Independent Contractor Agreement

Version 1.1 | October 28, 2026
Platform: KYRO, operated by Kyvo LLC

1. PARTIES AND PURPOSE

This Creator Operations & Commission Agreement ("Agreement") is entered into between Kyvo LLC, operating the KYRO platform ("KYRO"), and the undersigned creator ("Creator").

KYRO enables Creators to participate in advertising campaigns offered by participating brands ("Brands"). This Agreement establishes the Creator's independent contractor status, commission structure, payment process, tax responsibilities, and content usage protections.

Each campaign may have additional terms identifying the Brand, eligible products, commission rate, attribution rules, and campaign requirements.

2. INDEPENDENT CONTRACTOR STATUS

The Creator acknowledges that they participate as an independent contractor and not as an employee of KYRO, Kyvo LLC, or any Brand solely by participating through KYRO.

The Creator is not entitled to a salary, hourly wages, employee benefits, or guaranteed earnings under this Agreement. Compensation is based on eligible commissions generated under applicable campaign terms.

The Creator retains responsibility for their own business expenses and applicable federal, state, and local tax obligations.

Nothing in this Agreement is intended to override any employment classification or other requirement imposed by applicable law.

3. NO CREATOR FEES

KYRO does not charge Creators fees to participate in its creator commission program.

The Creator will not be charged by KYRO for:

- Onboarding or account activation.
- Platform participation.
- KYRO transaction fees.
- KYRO payout processing fees.
- Access to eligible Brand campaigns.

KYRO will not deduct a platform service fee from the Creator's campaign commission under this Agreement.

This provision does not prevent adjustments to commissions for legitimate returns, refunds, cancellations, chargebacks, or other adjustments expressly permitted under the applicable campaign terms and law. Such adjustments are not KYRO participation fees.

4. COMMISSION-ONLY COMPENSATION

The Creator may earn commissions only on eligible sales attributed to the Creator's approved content or participation in a qualifying Brand advertising campaign, according to the applicable campaign terms.

Each campaign will specify or make available:

1. The participating Brand and eligible products.
2. The applicable commission rate.
3. The sales attribution method.
4. The requirements for an order to qualify for commission.
5. Applicable refund, return, cancellation, or chargeback adjustments.
6. The payment process and expected payment timing.

Unless a campaign expressly states otherwise in writing, the Creator is not entitled to compensation for views, impressions, engagement, content creation alone, or other activity that does not generate eligible attributed sales.

No minimum sales volume, commission amount, campaign selection, or earnings level is guaranteed.

5. BRAND PAYMENT RESPONSIBILITY AND STRIPE CONNECT

The Creator acknowledges that **the Brand running the applicable campaign is responsible for funding and paying the commissions owed on eligible attributed sales**.

Payments are processed through Stripe Connect using the applicable Brand and Creator payment arrangements.

The payment process may involve campaign tracking, sales attribution, order fulfillment, applicable return windows, Brand payment authorization, and payment processor processing times.

The following conditions apply:

- The Brand is responsible for the commission obligations arising from its campaign.
- The Creator's commission is calculated according to the applicable campaign terms and eligible attributed sales.
- Payment timing depends on the campaign's payment terms, the Brand's funding and authorization, and applicable processing requirements.
- KYRO may facilitate campaign administration, sales tracking, reporting, and payment coordination.
- KYRO does not guarantee a Brand's payment obligations and is not required under this Agreement to advance its own funds to replace a Brand's unpaid commissions.
- A Brand's late payment, failure to authorize payment, insufficient funds, insolvency, or other nonpayment may delay or prevent receipt of the affected commission.

KYRO's role in facilitating the platform or payment workflow does not, by itself, make KYRO the party responsible for funding the Brand's commissions.

Nothing in this section waives any independent obligation KYRO may expressly assume in a separate written agreement or any obligation imposed by applicable law.

6. COMMISSION CALCULATION AND PAYMENT RECORDS

Commissions are calculated using the applicable campaign rate and eligible attributed sales, subject to the campaign's attribution rules and permitted adjustments.

The Creator acknowledges that reported sales may change due to returns, refunds, cancellations, chargebacks, or attribution corrections.

The Creator must provide accurate payment account information and any required tax documentation to facilitate payment.

The Creator should retain relevant campaign records, payment statements, and communications concerning commissions. Questions about a commission should be raised through the applicable KYRO support process with sufficient information to identify the campaign and transaction.

KYRO may assist with investigating campaign or attribution discrepancies, but such assistance does not constitute a guarantee that a Brand will pay a disputed or overdue amount.

7. U.S. TAX DOCUMENTATION AND REPORTING

The Creator is responsible for providing accurate tax information reasonably required for payment and tax reporting, including a completed Form W-9 when applicable.

The Creator is responsible for reporting their compensation and satisfying their applicable federal, state, and local tax obligations.

The relevant Brand, payment settlement entity, or other responsible reporting party will handle applicable information reporting, including Form 1099-NEC where required by law. The identity of the reporting party and the applicable reporting requirements depend on the actual payment arrangements and applicable tax rules.

The Creator acknowledges that KYRO does not provide personal tax advice and that receiving a Form 1099 does not, by itself, determine independent contractor classification.

8. CREATOR OWNERSHIP AND CONTENT LICENCE

The Creator retains ownership of original content, subject to the rights expressly granted under the applicable KYRO Terms of Service and campaign terms.

The Creator acknowledges that KYRO's existing Terms of Service govern the applicable content licence and the Brand's permitted use of approved videos.

Unless a separate written licence authorizes broader usage, the Brand may use approved Creator content only as paid advertising within the Brand's connected Meta advertising account, subject to the applicable campaign terms.

The standard licence lasts for the campaign term plus 30 days, unless extended in writing as permitted by the governing terms.

The licence does not independently authorize use on other advertising accounts, websites, email campaigns, marketplaces, retail or out-of-home placements, or organic social media accounts.

The Brand may make only the edits permitted under the applicable terms. The Creator's ownership is not transferred merely because the content is approved or used in an advertising campaign.

9. BRAND NONPAYMENT AND CONTENT USAGE ENFORCEMENT

The Creator acknowledges that content usage rights are subject to the applicable KYRO Terms of Service and licence terms.

Where the governing terms provide for automatic licence termination because an amount is overdue, the licence in the affected approved content terminates according to those terms without a separate notice being required.

After the applicable licence terminates, the Brand must stop using the affected content and comply with the applicable removal and deletion requirements. Payment of an overdue amount reinstates a licence only as provided by the governing terms and does not automatically authorize use during any period when the licence was terminated.

KYRO may take available contractual or legal measures to address unauthorized content use, including documenting the violation, issuing notices, seeking removal of content, and pursuing remedies available under the applicable agreements and law.

The Creator may provide evidence of their ownership, campaign participation, and the unauthorized use to support appropriate enforcement action.

Unauthorized-use damages

If a Brand continues to use Creator content after its licence has expired or terminated, or otherwise uses the content outside the scope of its licence, the unauthorized use may give rise to claims for damages and other available remedies.

Proposed contractual damages measure: To the extent permitted by the governing agreement and applicable law, damages for unauthorized use may be calculated at **four times the gross revenue directly generated by the unauthorized use of the affected Creator content during the violation period**.

For this purpose, the relevant calculation must be supported by reasonably available campaign, advertising, sales, and attribution records. The calculation is intended to measure the unauthorized commercial exploitation of the content; it is not a deduction from the Creator's legitimate commissions or a fee charged to the Creator.

The four-times measure does not apply automatically unless incorporated into an enforceable agreement binding the Brand. It must be included in the applicable Brand-facing licence or agreement and supported under the governing law. The Creator does not receive a guaranteed recovery under this Agreement merely because a violation is alleged.

Nothing in this section limits any other remedy available under the applicable agreements or law.

10. CAMPAIGN PARTICIPATION AND BRAND RESPONSIBILITIES

The Creator may apply for or participate in available campaigns, subject to eligibility and campaign requirements.

The Brand is responsible for setting its campaign commission, selecting Creators, approving content, funding its commissions, and complying with the terms governing its campaign and content licence.

KYRO does not guarantee campaign selection, campaign duration, sales performance, or a particular level of earnings.

Any campaign-specific requirements will be provided through the applicable campaign terms or platform disclosures.

11. TERMINATION AND OUTSTANDING COMMISSIONS

The Creator may discontinue participation in future campaigns, subject to any obligations already incurred under applicable campaign terms.

Termination of participation does not automatically eliminate commissions already earned on eligible attributed sales. Such commissions remain subject to the applicable payment terms and any permitted adjustments.

The Creator's content rights and any licence previously granted to a Brand remain governed by their applicable terms. The expiration or termination of a licence does not authorize continued use outside its permitted scope.

12. RELATIONSHIP TO THE KYRO TERMS OF SERVICE

This Agreement must be read together with the applicable KYRO Terms of Service and campaign terms.

The existing KYRO Terms of Service govern matters including campaign operations, content licences, permitted usage, payment mechanics, and remedies to the extent applicable.

This Agreement does not replace or amend those Terms of Service. If a conflict or ambiguity arises, the applicable governing terms and any required legal rules will determine the parties' rights and obligations.

13. GOVERNING LAW

The governing-law and dispute-resolution provisions of the applicable KYRO Terms of Service apply to this Agreement to the extent applicable and legally effective.

14. CREATOR ACKNOWLEDGMENT AND SIGNATURE

By signing below, the Creator acknowledges and agrees that:

- They participate as an independent contractor, not as an employee of KYRO or Kyvo LLC.
- Their compensation is commission-based and tied to eligible attributed sales under applicable Brand campaign terms, unless a campaign expressly provides otherwise.
- The Brand running the campaign is responsible for funding and paying the applicable commissions through Stripe Connect.
- KYRO facilitates the platform and related payment workflow but does not guarantee Brand payment or advance unpaid Brand commissions under this Agreement.
- KYRO charges the Creator no onboarding, participation, transaction, or payout fees under this program.
- The Creator is responsible for providing required U.S. tax documentation and handling their own applicable tax obligations.
- The Creator retains ownership of their content, subject to the licences expressly granted under the applicable agreements.
- Unauthorized use of Creator content may result in licence termination and available contractual or legal remedies.
- They have read and understood this Agreement and the applicable KYRO Terms of Service.

Creator’s full legal name:

Creator’s business name, if applicable:

Creator’s email address:

Signature (type full legal name):

Date signed (YYYY-MM-DD):

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